

CrownLink Terms of Use

Updated 08.22.2022

RECITALS

Crown Bioscience, Inc. ("**Provider**"), through its Affiliates, provides contract research services (the "**Services**") to its customers ("**Customer**") under certain service agreement(s) or work order(s) between Provider and each Customer (the "**Service Agreement**"). In connection with the Services, Provider offers, and Customer desires to use, the Portal (as defined below) as a platform to facilitate the management, communication and delivery of the Services.

The following term and conditions (these "**Terms**") constitute a legal agreement between Provider and Customer that governs Customer's access to and use of the Portal. Provider and Customer are each a "**Party**" to these Terms and are together referred to as the "**Parties**".

In consideration of the mutual promises contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree to enter into these Terms as set forth herein.

1. Definitions.

(a) "**Affiliate**" shall have the meaning defined in the Service Agreement.

(b) "**Aggregated Statistics**" means statistics directly related to Customer's use of the Portal which will be aggregated and anonymized and be used by Provider to compile statistical and performance information related to the provision and operation of the Portal.

(c) "**Authorized User**" means Customer's and Customer's Affiliates' employees (i) who are authorized by Customer to access and use the Portal under the rights granted to Customer pursuant to these Terms and (ii) for whom access to the Portal has been procured hereunder.

(d) "**Confidential Information**" shall have the meaning defined in the Service Agreement.

(e) "**Customer Account**" means the account through which Customer and Authorized User may access and use the Portal.

(f) "**Customer Data**" means information, data, and other content, in any form or medium, that is submitted, posted, or otherwise transmitted by or on behalf of Customer or any Authorized User in Customer Account for processing, storage or hosting, including any work products or deliverables generated by Provider for Customer in the course of providing Services to the extent they are owned by Customer in accordance with the Service Agreement. For the avoidance of doubt, Customer Data does not include Provider Content, Portal IP or Aggregated Statistics.

(g) **"Portal"** means the website at <https://crownlink.crownbio.com>, including its features, functionality, applications, software, system interfaces, text, displays, images, video and audio, and the design, selection, and arrangement thereof, offered on or through such website.

(h) **"Portal IP"** means the Portal, user manual, software libraries and code, command line tools, web-based technologies and algorithms, templates, and other related technology and all related patent rights, copyrights, trade secrets, trademarks, service marks, goodwill, and other intellectual property in connection with the foregoing. For the avoidance of doubt, Portal IP includes Aggregated Statistics and any information, data, or other content derived from Provider's monitoring of Customer's access to or use of the Portal, but does not include Customer Data.

(i) **"Provider Content"** means any content or information made available by Provider or Provider's Affiliates through or in connection with the Portal, including any methodology, technology, know-how and information, and any associated intellectual property rights, in which Provider or any third party has proprietary rights.

(j) **"Third-Party Products"** means any products, content, services, information, websites, or other materials that are owned by third parties and are incorporated into or accessible through the Portal.

2. Access and Use.

(a) Grant of Right. Subject to the provisions of these Terms, Provider hereby grants Customer a revocable, non-exclusive, non-transferable, non-sublicensable, limited right to access and use the Portal by Authorized Users solely for Customer's internal business purposes. Such right shall commence upon Customer's registering to use the Portal and continue until one (1) year after the expiration or termination of the Service Agreement unless terminated earlier in accordance with these Terms.

(b) Agreement. By registering to use the Portal, Customer hereby represents and warrants to Provider that it has read and agrees to be bound by these Terms and that the individual submitting the Portal registration on behalf of Customer is authorized to bind Customer to these Terms. Customer hereby acknowledges and agrees that the Portal shall be solely and exclusively governed by these Terms, which shall supersede any terms set forth in the Service Agreement or otherwise to the extent applicable to the Portal.

(c) Use Restrictions. Customer shall not use, and shall not permit any Authorized Users to use, the Portal or any software component of the Portal for any purposes beyond the scope of the right granted in these Terms. Customer shall not, directly or indirectly, and shall not permit any Authorized Users to: (i) copy, modify, or create derivative works of the Portal or any software component of the Portal, in whole or in part; (ii) rent, lease, lend, sell, license, sublicense, assign, distribute, publish, transfer, or otherwise make available the Portal except as expressly permitted under these Terms; (iii) reverse engineer, disassemble, decompile, decode, adapt, or otherwise attempt to derive or gain access to any software component of the Portal, in whole or in part; (iv) remove any

proprietary notices from the Portal; or (v) use the Portal, Portal IP or Provider Content in any manner or for any purpose that infringes, misappropriates, or otherwise violates any intellectual property right or other right of any person, or that violates any applicable law, regulation, or rule.

(d) Aggregated Statistics. Notwithstanding anything to the contrary in these Terms, Provider may monitor Customer's use of the Portal and collect and compile Aggregated Statistics related to Customer's use of the Portal which will be used by Provider in an aggregated manner, including to compile statistical and performance information related to the provision and operation of the Portal. As between Customer and Provider, all right, title, and interest in Aggregated Statistics, and all intellectual property rights therein, belong to and are retained solely by Provider. Customer agrees that Provider may (i) make Aggregated Statistics publicly available in compliance with applicable law, and (ii) use Aggregated Statistics to the extent and in the manner permitted under applicable law; provided that such Aggregated Statistics do not identify Customer or reveal Customer's Confidential Information.

(e) Reservation of Rights. Provider reserves all rights not expressly granted to Customer in these Terms. Except for the limited rights and licenses expressly granted under these Terms, nothing in these Terms grants, by implication, waiver, estoppel, or otherwise, to Customer or any third party any intellectual property rights or other right, title, or interest in or to the Portal or Portal IP.

(f) Suspension, Change and Discontinuation. Notwithstanding anything to the contrary in these Terms, Provider may temporarily suspend Customer's and any Authorized User's access to any portion or all of the Portal or change or discontinue any portion or all of the Portal, provided that Provider shall continue to fulfill its delivery and record retention obligations under the Service Agreement despite any suspension, change or discontinuation of the Portal. **PROVIDER WILL HAVE NO LIABILITY FOR ANY DAMAGE, LIABILITIES, LOSSES (INCLUDING ANY LOSS OF USE OR PROFITS), OR ANY OTHER CONSEQUENCES THAT CUSTOMER OR ANY AUTHORIZED USER MAY INCUR AS A RESULT OF SUSPENSION, CHANGE OR DISCONTINUATION OF THE PORTAL.**

3. Customer Responsibilities.

(a) Acceptable Use Policy. The Portal may not be used for unlawful, fraudulent, offensive, or obscene activity, as further described and set forth in Provider's acceptable use policy ("AUP") available at the home page of the Portal, as may be amended from time to time, which is incorporated herein by reference. Customer will comply with all provisions of these Terms, all applicable laws, rules, and regulations, and all guidelines, standards, and requirements that may be posted on the Portal from time to time, including the AUP.

(b) Account Use. Customer is responsible and liable for all activities that occur as a result of access to its Customer Account obtained from Customer or any Authorized User, directly or indirectly, whether such access or activities are authorized by Customer

or undertaken by Customer, its employees or a third party. Without limiting the generality of the foregoing, Customer is responsible for all acts and omissions of Authorized Users, and any act or omission by an Authorized User that would constitute a breach of these Terms if taken by Customer will be deemed a breach of these Terms by Customer. Customer shall make all Authorized Users aware of the provisions of these Terms as applicable to such Authorized User's use of the Portal and shall cause Authorized Users to comply with such provisions.

(c) Customer Data. Customer agrees that Provider may perform all acts with respect to the Customer Data, including data masking, as may be necessary for Provider to develop and provide the Portal or the Services to Customer, provided that such acts do not identify Customer or reveal Customer's confidential information.

(d) Access by Authorized Users.

(i) Customer is responsible for controlling, defining and managing access to its Customer Account by Authorized Users and their authorities to review, modify, download or transmit the Customer Data or perform other activities in the Customer Account. **CUSTOMER HEREBY ACKNOWLEDGES AND AGREES THAT BY ACCESSING THE PORTAL, ALL AUTHORIZED USERS OF CUSTOMER WILL HAVE ACCESS TO THE CUSTOMER DATA WITH RESPECT TO ALL STUDIES PLACED UNDER THE SERVICE AGREEMENT THAT ARE STORED IN OR SHARED VIA THE CUSTOMER ACCOUNT.**

(ii) **Customer shall inform Provider in writing by emailing to busdev@crownbio.com when any Authorized User no longer works at or for Customer or when Customer wishes to modify, suspend or terminate any Authorized User's access to or right to use the Portal. Upon such notice, Provider will deactivate such Authorized User's access to the Portal or take other actions as requested.** Provider and Provider's Affiliates are not responsible for any consequences as a result of Customer's failure to notify Provider in a timely fashion.

(iii) In order to provide access to the Portal, Provider will collect personal data from Authorized Users. Such collection of personal data will be governed by Provider's privacy policy available at <https://crownlink.crownbio.com/static/media/PortalPrivacyPolicy20220719.c8bd15eb33b67c80024b.pdf>. Each Authorized User shall consent to the practices described in Provider's privacy policy in order to access and use the Portal, and such consent shall be deemed given when the Authorized User registers to use the Portal.

(e) Passwords and Access Credentials. All log-in credentials and private keys generated by the Portal are for Customer's internal use only. Customer and its Authorized Users are responsible for keeping the passwords and access credentials associated with the

Portal confidential. Customer and Authorized Users shall promptly notify Provider about incidents that may lead to any unauthorized access to Customer Account.

(f) Security and Backup. Customer is responsible for properly configuring and using the Portal and otherwise taking appropriate action to secure, protect and backup the Customer Data in a manner that will provide appropriate security and protection, which might include use of encryption to protect the Customer Data from unauthorized access and routinely archiving the Customer Data on Customer's local server.

(g) Third-Party Products. The Portal may permit access to Third-Party Products. Such Third-Party Products are subject to their own terms and conditions presented to Customer for acceptance within the Portal by website link or otherwise. If Customer does not agree to abide by the applicable terms for any such Third-Party Products, then Customer should not install, access, or use such Third-Party Products.

4. Confidential Information. The Parties shall be bound by the confidentiality obligations set forth in the Service Agreement in their access to and use of the Portal and the contents therein. For this purpose, any Customer Data shall be considered Customer's Confidential Information and Provider Content and Portal IP shall be considered Provider's Confidential Information.

5. Intellectual Property Ownership; Feedback. As between Customer and Provider, (a) Provider shall own all right, title, and interest in and to the Portal, Portal IP and Provider Content and all updates and enhancements, reproductions and corrections thereof; and (b) Customer shall own all right, title, and interest in and to Customer Data. If Customer or any of Customer's employees, contractors, or agents sends or transmits any communications or materials to Provider by mail, email, telephone, or otherwise, suggesting or recommending changes to the Portal, including without limitation, new features or functionality relating thereto, or any comments, questions, suggestions, or the like ("**Feedback**"), Provider is free to use such Feedback irrespective of any other obligation or limitation between Customer and Provider governing such Feedback. All Feedback is and will be treated as non-confidential. Customer hereby assigns to Provider on Customer's behalf, and shall cause Customer's employees, contractors, and agents to assign, all right, title, and interest in, and Provider is free to use, without any attribution or compensation to Customer or any third party, any ideas, know-how, concepts, techniques, or other intellectual property rights contained in the Feedback, for any purpose whatsoever, although Provider is not required to use any Feedback.

6. Copyright. All functionality and features of the Portal, such as text, graphics, logos, button icons, images, audio clips, digital downloads, data compilations, and software, are the property of Provider or its licensors and protected by United States and international copyright laws.

7. Trademarks. "Crown Bioscience", "CrownLink" and other graphics, logos, page headers, button icons, scripts, and service names relating to the Portal are trademarks, registered trademarks or trade dress of Provider in the U.S. and/or other countries. Provider's trademarks and trade dress may not be used in connection with any product or service that is not Provider's, in any manner that is likely to cause confusion among customers, or in any manner that disparages or

discredits Provider. All other trademarks not owned by Provider that appear on Provider's website are the property of their respective owners, who may or may not be affiliated with, connected to, or sponsored by Provider.

8. Warranty and Warranty Disclaimer.

(a) Customer warrants that (i) Customer owns all right, title, and interest, including all intellectual property rights, in and to the Customer Data furnished by it or any Authorized User and (ii) both the Customer Data furnished by it or any Authorized User and Customer's and Authorized Users' use of the Portal are in compliance with the AUP.

(b) THE PORTAL IS PROVIDED "AS IS" AND PROVIDER SPECIFICALLY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE RELATING THERETO. PROVIDER SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FUNCTIONALITY, PERFORMANCE, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE. PROVIDER MAKES NO WARRANTY OF ANY KIND THAT THE PORTAL, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL MEET CUSTOMER'S OR ANY OTHER PERSON'S OR ENTITY'S REQUIREMENTS, OPERATE WITHOUT INTERRUPTION, ACHIEVE ANY INTENDED RESULT, BE COMPATIBLE OR WORK WITH ANY OF CUSTOMER'S OR ANY THIRD PARTY'S SOFTWARE, SYSTEM, OR OTHER SERVICES, OR BE SECURE, ACCURATE, COMPLETE, FREE OF HARMFUL CODE, OR ERROR-FREE, OR THAT ANY ERRORS OR DEFECTS CAN OR WILL BE CORRECTED.

(c) The Portal is built on a software platform provided by Amazon Web Services, Inc. ("AWS") and is hosted on datacenter operated by AWS. Notwithstanding anything to the contrary in these Terms or in the Service Agreement, the Portal shall be subject to the representations, warranties, conditions and limitations made by AWS (available at <https://aws.amazon.com/legal/>) to the extent applicable. These Terms do not establish privity of contract between AWS and Customer and does not give Customer any right of action against AWS. Provider is not responsible for the products, services, acts and omissions of AWS and all other vendors, if any, as they may relate to the Portal.

9. Indemnification.

(a) Provider Indemnification.

(i) Provider shall defend and hold harmless Customer from and against any and all third-party claim, suit, action, or proceeding ("**Third-Party Claim**") alleging that the Portal infringes or misappropriates such third party's U.S. intellectual property rights, provided that Customer promptly notifies Provider in writing of the Third-Party Claim, cooperates with Provider, and allows Provider to solely control the defense and settlement of such Third-Party Claim.

(ii) If such a Third-Party Claim is made or Provider reasonably anticipates such a Third-Party Claim will be made, Customer agrees to permit Provider, at Provider's sole discretion, to (A) modify or replace the Portal, or component or part thereof, to make it non-infringing, or (B) obtain the right for Customer to continue using the Portal. If Provider determines that neither alternative is reasonably available, Provider may discontinue the Portal, in its entirety or with respect to the affected component or part, effective immediately on written notice to Customer. This Subsection 9(a)(ii) sets forth Customer's sole remedies and Provider's sole liability and obligation for any actual, threatened, or alleged Third-Party Claims that the Portal infringes, misappropriates, or otherwise violates any intellectual property rights of any third party.

(iii) This Section 9(a) will not apply to the extent that any such Third-Party Claim arises from Customer Data or Third-Party Products.

(b) Customer Indemnification. Customer shall indemnify, hold harmless, and, at Provider's option, defend Provider and its Affiliates and their respective officers, directors, employees, agents, licensors, vendors, successors, and assigns from and against any and all losses, demands, damages, or liabilities (including reasonable attorneys' fees) arising from or relating to any Third-Party Claim (i) alleging that the Customer Data furnished by or on behalf of Customer infringes or misappropriates a third party's intellectual property or proprietary rights; or (ii) based on Customer's or any Authorized User's negligence or willful misconduct or use of the Portal in a manner not authorized by these Terms; provided that Customer may not settle any Third-Party Claim against Provider unless Provider consents to such settlement, and further provided that Provider will have the right, at its option and at Customer's expense, to defend itself against any such Third-Party Claim or to participate in the defense thereof by counsel of its own choice.

10. Limitations of Liability. IN NO EVENT WILL PROVIDER BE LIABLE UNDER OR IN CONNECTION WITH THESE TERMS UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, FOR ANY: (a) CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, ENHANCED, OR PUNITIVE DAMAGES; (b) INCREASED COSTS, DIMINUTION IN VALUE OR LOST BUSINESS, OPPORTUNITY, PRODUCTION, REVENUES, OR PROFITS; (c) LOSS OF GOODWILL OR REPUTATION; (d) USE, INABILITY TO USE, LOSS, INTERRUPTION, DELAY OR RECOVERY OF ANY DATA, OR BREACH OF DATA OR SYSTEM SECURITY; (e) COST OF REPLACEMENT GOODS OR SERVICES, (f) ANY INVESTMENTS, EXPENDITURES, OR COMMITMENTS BY CUSTOMER IN CONNECTION WITH CUSTOMER'S USE OF OR ACCESS TO THE PORTAL; (g) ANY ACTS OR OMISSIONS OF CUSTOMER OR ITS AUTHORIZED USERS; OR (h) ANY UNAUTHORIZED ACCESS TO, ALTERATION OF, OR THE DELETION, DESTRUCTION, DAMAGE, LOSS OF OR FAILURE TO STORE ANY CUSTOMER DATA OR OTHER CONTENT, IN EACH CASE REGARDLESS OF WHETHER THE POSSIBILITY OF SUCH LOSSES OR DAMAGES WERE ADVISED OF OR OTHERWISE FORESEEABLE. PROVIDER'S TOTAL LIABILITY TO A CUSTOMER OR ANYONE IN CONNECTION WITH THE PORTAL, ON THE BASIS

OF ANY THEORY OF LIABILITY OR CAUSE OF ACTION, SHALL NOT EXCEED THE INSURANCE PROCEEDS PAID OUT ON PROVIDER'S INSURANCE POLICY IN SETTLEMENT OR SATISFACTION OF SUCH CUSTOMER'S OR SUCH PERSON'S CLAIM(S).

11. Termination.

(a) Termination. In addition to any other express termination right set forth in these Terms:

(i) either Party may terminate the use of the Portal for any reason upon thirty (30) days' advance notice.

(ii) either Party may terminate the use of the Portal, effective on written notice to the other Party, if the other Party materially breaches these Terms, and such breach: (A) is incapable of cure; or (B) being capable of cure, remains uncured thirty (30) days after the non-breaching Party provides the breaching Party with written notice of such breach; or

(iii) either Party may terminate the use of the Portal, effective immediately upon written notice to the other Party, if the other Party: (A) becomes insolvent or is generally unable to pay, or fails to pay, its debts as they become due; (B) files or has filed against it, a petition for voluntary or involuntary bankruptcy or otherwise becomes subject, voluntarily or involuntarily, to any proceeding under any domestic or foreign bankruptcy or insolvency law; (C) makes or seeks to make a general assignment for the benefit of its creditors; or (D) applies for or has appointed a receiver, trustee, custodian, or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

(b) Effect of Termination. Upon expiration or termination of the right to use the Portal, Customer's access to the Portal will be deactivated. No expiration or termination of the right to use the Portal will affect Customer's liabilities that have accrued before such expiration or termination, or entitle Customer to any refund.

(c) Survival. This Section 11(c), Sections 4 through 10, 13, and 14 and any right, obligation, or required performance of the Parties in these Terms which, by its express terms or nature and context, is intended to survive termination or expiration of these Terms, will survive any such termination or expiration.

12. Modifications. Customer acknowledges and agrees that Provider has the right, in Provider's sole discretion, to modify these Terms from time to time, and that modified terms become effective on posting. Customer will be notified of modifications through notifications or posts on the Portal. Customer is responsible for reviewing and becoming familiar with any such modifications. Customer's continued use of the Portal after the effective date of the modifications will be deemed acceptance of the modified terms.

13. Governing Law and Dispute Resolution. These Terms are governed by and construed in accordance with the internal laws of the State of California without giving effect to any choice or conflict of law provision or rule that would require or permit the application of the laws of any jurisdiction other than those of the State of California. Any legal suit, action, or proceeding arising out of or related to these Terms or the rights granted hereunder will be instituted exclusively in the federal or state courts located in the State of California, and each Party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding. Customer further agrees that in the event Customer initiates a claim against Provider relating to the Portal, at the request of Provider, such claim may be consolidated with other claims brought by other parties arising out of the same or a set of related events or circumstances for resolution in a single proceeding.

14. Miscellaneous. These Terms shall constitute the entire agreement and understanding between the Parties hereto with respect to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. In the event of a conflict between these Terms and the Service Agreement in relation to the Portal, the provisions of these Terms shall prevail. All notices or other communications required or permitted to be given pursuant to these Terms shall be in writing and shall be considered properly given or made if delivered via the means and to the other Party's address as indicated in the Service Agreement. Notwithstanding the foregoing, Customer hereby consents to receiving electronic communications from Provider relating to the Portal. These electronic communications may include notices about applicable fees and charges, transactional information, and other information concerning or related to the Portal. Customer agrees that any notices, agreements, disclosures, or other communications that Provider sends to Customer electronically will satisfy any legal communication requirements, including that such communications be in writing. The invalidity, illegality, or unenforceability of any provision herein does not affect any other provision herein or the validity, legality, or enforceability of such provision in any other jurisdiction. Any failure to act by Provider with respect to a breach of these Terms by Customer or others does not constitute a waiver and will not limit Provider's rights with respect to such breach or any subsequent breaches. These Terms are personal to Customer and may not be assigned or transferred for any reason whatsoever without Provider's prior written consent and any action or conduct in violation of the foregoing will be void and without effect. Provider expressly reserves the right to assign these Terms and to delegate any of its obligations hereunder.